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Electronically FILED by
Superior Court of California,
County of Los Angeles
11/26/2025 11:47 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By D. Diaz, Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

STANLEY-MOSK SUPERIOR COURTHOUSE

CENTRAL DISTRICT

DERRICK LAMONT BEVERLY, PLAINTIFF, V. **FOX NORMANDIE APARTMENTS, LP;** **A COMMUNITY OF FRIENDS; and DOES 1–20** DEFENDANTS.	**CASE NO.: 22STUD06657** **OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP; CCP § 425.16)** **Judge: Hon. Hernandez** **Dept.: 34** **Hearing: January 6, 2026**

OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP; CCP § 425.16) DECLARATION OF DERRICK LAMONT BEVERLY NOTICE OF MOTION AND MOTION FOR SANCTIONS AGAINST DEFENDANTS AND DEFENSE COUNSEL PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DECLARATION OF ADA REYES IN SUPPORT OF DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP)

PLAINTIFF'S OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE

Plaintiff Derrick LaMont Beverly ("Plaintiff") respectfully submits the following Opposition to the Special Motion to Strike ("Motion") filed by Defendants Fox Normandie Apartments, LP and A Community of Friends (collectively, "Defendants") pursuant to Code of Civil Procedure section 425.16.

I. INTRODUCTION

Defendants attempt to rebrand this housing-rights and tenant-protection lawsuit as an attack on their "petitioning activity." It is not. Plaintiff's verified complaint arises primarily from Defendants' non-communicative illegal conduct: a wrongful lockout, failures to provide required relocation benefits, harassment, and statutory violations that occurred on the ground, not on paper.

Anti-SLAPP is a shield for speech, not a sword to cut off accountability for wrongful eviction conduct. California Supreme Court authority requires courts to look to the "gravamen" of the claim, not simply whether some litigation occurred in the background. Here, the gravamen of Plaintiff's claims is physical, statutory, and non-communicative conduct, including violations of Los Angeles County tenant-protection ordinances and Civil Code provisions governing lockouts and habitability.

Even if the Court were to find that some allegations "arise from" protected activity, Plaintiff easily demonstrates a probability of prevailing on multiple causes of action through admissible evidence. The litigation privilege does not immunize illegal lockouts, statutory violations, or discriminatory conduct. Nor do prior 2023 actions, several of which were dismissed without prejudice or involved different parties and issues, bar Plaintiff's present claims.

The Motion should be denied in its entirety. At minimum, the Court should reject Defendants' overbroad attempt to wipe out the whole complaint and instead leave intact all allegations and causes of action grounded in non-protected conduct.

Under **Park v. CSU (2017) 2 Cal.5th 1057**, courts must identify whether the claim is *driven by protected speech or by unprotected conduct*. Under **Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995**, mixed claims cannot be stricken wholesale.

II. FACTUAL BACKGROUND

A. Tenancy and Housing Program

1. Plaintiff was a long-term tenant at 849 S. Normandie Avenue, Los Angeles, California, Unit 101, in housing associated with A Community of Friends and Fox Normandie

Apartments, LP. Plaintiff participated in a program intended to stabilize housing for vulnerable residents.

8.52

2. Plaintiff complied with the program requirements and treated the premises as his home. Plaintiff reasonably expected that any issues affecting his tenancy would be addressed through lawful procedures and that he would receive all tenant protections afforded under state law and local ordinance.

3. Defendants never provided timely or legally required Ellis Act withdrawal notice, nor did they comply with the prerequisite filings or relocation requirements under LACC 8.52

B. The 2022 Unlawful Detainer Case and Lack of Actual Notice

3. In or around August 2022, Defendants allegedly served a 30-day notice to quit. Plaintiff never received that notice and had no actual knowledge of any impending unlawful detainer proceeding.

4. Without Plaintiff's knowledge, Defendants filed an unlawful detainer action, Fox Normandie Apartments, LP v. Beverly, Los Angeles Superior Court Case No. 22STUD06657.

5. Default was entered on or about November 21, 2022, and a clerk's judgment for

possession issued on or about November 29, 2022. Plaintiff did not have actual notice of the suit or the default proceedings and thus had no meaningful opportunity to be heard.

C. January 26, 2023 Lockout and On-the-Ground Conduct

6. On January 26, 2023, the Los Angeles County Sheriff's Department executed a lockout at Plaintiff's unit. Plaintiff was removed from his home and effectively displaced.

7. During this process, Defendants and their agents engaged in non-communicative conduct including, but not limited to, directing or facilitating Plaintiff's removal, restricting access to his unit, and preventing him from securing certain personal property.

8. Plaintiff recorded portions of the lockout on Facebook Live, documenting the practical and physical reality of being removed from his home and left without adequate housing.

9. At no time did Defendants provide Plaintiff with relocation assistance as required by Los Angeles County Code ("LACC") Chapter 8.52 and related provisions governing no-fault evictions and permanent displacement. Nor did they advise Plaintiff of such rights in a manner that allowed him to protect himself.

D. Post-Lockout Harm and Statutory Violations

10. As a direct result of the lockout and Defendants' failure to comply with local tenant protections, Plaintiff lost his Section 8 voucher and fell into homelessness.

11. Plaintiff suffered economic losses (including lost voucher, increased living costs, and damaged credit), non-economic harm (severe emotional distress, trauma, and humiliation), and health-related impacts while living on the street.

12. Plaintiff's damages are ongoing and flow primarily from Defendants' acts and omissions in connection with the lockout and failure to comply with statutory tenant protections, not from Defendants' filing of a lawsuit.

III. LEGAL STANDARD

A special motion to strike under Code of Civil Procedure section 425.16 involves a two-step analysis. First, the defendant must show that the challenged claims arise from protected activity. Second, if defendant meets that burden, the plaintiff must demonstrate a probability of prevailing on the claim.

The statute is to be construed narrowly to avoid swallowing legitimate claims based on wrongful conduct. Courts focus on the actual nature of the wrong alleged—its "principal thrust or gravamen"—rather than isolated references to litigation or communications.

At Step Two, Plaintiff must show only a "minimum level of legal sufficiency and triable merit." (*Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260.)*

IV. ARGUMENT

A. Defendants Fail to Satisfy Step One: Plaintiff's Claims Do Not Arise Solely from Protected Activity

Anti-SLAPP does not apply to *illegal evictions*, *wrongful conduct*, *physical acts*, or *statutory violations*, even if litigation exists in the background.

1. Gravamen of the Claims Is Non-Communicative Illegal Conduct

Plaintiff's claims are grounded in Defendants' non-communicative conduct: a lockout carried out in a manner that violated tenant-protection ordinances; denial of relocation benefits; interference with property; and the resulting homelessness and injury. This is conduct, not speech.

California courts distinguish between: (1) statements and writings made in connection with judicial or quasi-judicial proceedings, and (2) conduct that is independently wrongful, such as discriminatory acts, physical interference, and statutory violations. Anti-SLAPP protects the former, not the latter.

Plaintiff's complaint challenges the way the lockout was executed and the surrounding failures to comply with relocation and tenant-protection laws, not merely the fact that a complaint was filed in 2022.

2. Litigation Privilege Does Not Extend to Illegal Lockouts and Statutory Violations

Defendants attempt to stretch the litigation privilege to cover everything they did in connection with the eviction, including non-communicative conduct and statutory omissions. The privilege applies only to communications made in judicial or quasi-judicial proceedings or in anticipation thereof. It does not automatically immunize physical acts or conduct that violates statutory duties.

Plaintiff's claims regarding failure to provide relocation assistance, interference with tenancy rights, discrimination, negligence, and post-judgment conduct fall outside the scope of the privilege and, by extension, outside anti-SLAPP's protection.

3. Defendants' Overbroad Approach Conflicts with Mixed-Cause Authority

Even if some allegations could be construed as arising from protected activity, Defendants seek to strike essentially the entire complaint. Under Supreme Court authority governing mixed causes of action, courts must surgically target only those allegations that actually arise from

protected activity, not use anti-SLAPP as a generalized demurrer.

Defendants' request for broad-based erasure of Plaintiff's complaint demonstrates that their Motion is improperly aimed at the lawsuit as a whole, not narrow, discrete allegations.

B. Plaintiff Demonstrates a Probability of Prevailing on Multiple Causes of Action

Even if the Court proceeds to the second prong, Plaintiff meets his burden by presenting admissible evidence supporting his causes of action.

1. Wrongful Eviction and Illegal Lockout

Plaintiff's declaration establishes that he did not receive actual notice of the unlawful detainer action before default, and that the subsequent lockout occurred without relocation assistance or meaningful protections typically afforded to tenants. These facts support claims for wrongful eviction and related statutory violations.

2. Violations of Local Relocation and Tenant-Protection Ordinances

Plaintiff alleges violations of LACC Chapter 8.52 and related tenant-protection provisions. Those claims arise from Defendants' failure to pay relocation benefits and comply with local codes in executing a no-fault displacement. Plaintiff will support these claims with ordinance text, his declaration, and any available correspondence.

3. Negligence and Emotional Distress

Defendants owed Plaintiff duties of care in the management and termination of his tenancy, including duties arising from statutory schemes. Violations of those duties foreseeably caused Plaintiff to lose stable housing and suffer severe emotional distress. Plaintiff's declaration and exhibits demonstrate harm, including homelessness, health impacts, and financial loss.

4. Claims Are Not Barred by Prior 2023 Actions

Defendants rely on multiple prior 2023 matters to suggest that Plaintiff's claims have already been adjudicated. That is inaccurate. Several prior cases were dismissed without prejudice for failure to prosecute, which does not constitute a merits determination. Other actions involved different defendants and narrower issues.

There is no identity of causes of action, parties, or final judgments sufficient to support res judicata or collateral estoppel. Plaintiff's present complaint raises broader tenant-protection and statutory issues against Fox Normandie and ACOF that were not fully litigated in earlier cases.

C. At Minimum, the Court Should Decline to Strike Non-Protected Allegations

Even if the Court were to find some portions of the complaint arise from protected activity, the proper remedy is to surgically remove only those specific allegations, if any, rather than to strike entire causes of action that rest substantially on non-communicative conduct.

Plaintiff respectfully submits that all allegations relating to (1) physical lockout conduct, (2) statutory relocation violations, (3) discriminatory treatment, (4) harassment, and (5) negligent management fall outside anti-SLAPP and should remain intact.

- **Failure to provide relocation assistance states a claim.**
Los Angeles County Code § 8.52.090–.130

- **Illegal lockouts are actionable regardless of UD judgment.**
Civ. Code § 789.3; Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004.

- **Default judgment obtained without actual notice supports wrongful eviction claims.**
See Yvanova v. New Century Mortgage (2016) 62 Cal.4th 919 (no notice = void/voidable actions).

V. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court deny Defendants' Special Motion to Strike in its entirety. In the alternative, Plaintiff requests the Court limit any strike solely to discrete, genuinely protected-activity allegations (if any), leaving all claims based

on non-communicative conduct, statutory violations, and wrongful eviction intact, and further deny any request for attorney's fees or costs by Defendants.

Dated: November 25th, 2025

Respectfully submitted,

_____

/s/ Derrick LaMont Beverly

In, Propria Persona Sui Juris

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

STANLEY-MOSK SUPERIOR COURTHOUSE

CENTRAL DISTRICT

DERRICK LAMONT BEVERLY, Plaintiff, v. **FOX NORMANDIE APARTMENTS, LP;** **A COMMUNITY OF FRIENDS; and DOES 1–20** Defendants.	**Case No.: 22STUD06657** **DECLARATION OF DERRICK LAMONT BEVERLY** **Judge: Hon. Hernandez** **Dept.: 34** **Hearing: January 6, 2026**

OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP; CCP § 425.16) DECLARATION OF DERRICK LAMONT BEVERLY NOTICE OF MOTION AND MOTION FOR SANCTIONS AGAINST DEFENDANTS AND DEFENSE COUNSEL PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DECLARATION OF ADA REYES IN SUPPORT OF DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP)

DECLARATION OF DERRICK LAMONT BEVERLY

I, DERRICK LAMONT BEVERLY, declare:

1. I am the Plaintiff in the above-captioned action. I have personal knowledge of the facts stated in this Declaration and, if called as a witness, could and would testify competently to them.

2. I resided at 849 S. Normandie Avenue, Unit 101, in Los Angeles, California, under a housing program associated with A Community of Friends and Fox Normandie Apartments, LP. This unit was my home for an extended period of time.

3. I took my tenancy seriously, complied with program requirements to the best of my ability, and relied on having a stable place to live while rebuilding other aspects of my life.

4. In or around August 2022, I did not receive any 30-day notice to quit or other notice informing me that I would be sued in an unlawful detainer action. I never saw such a notice posted on my door or personally received it in my hands.

5. I did not receive a copy of the summons and complaint in the unlawful detainer case, believed to be Fox Normandie Apartments, LP v. Beverly, Los Angeles Superior Court Case No. 22STUD06657, and I had no actual knowledge that such a case had been filed before a default was taken against me.

6. I did not attend any trial or hearing in that unlawful detainer case before default and judgment were entered. I was unaware that the case was moving forward at all.

7. The first time I became fully aware of the unlawful detainer judgment and its effect on my housing was when the sheriff came to lock me out on January 26, 2023.

8. On January 26, 2023, I experienced a sheriff lockout at my unit. I was forced to leave my home under circumstances that were traumatic, rushed, and destabilizing.

9. I recorded portions of that lockout live on Facebook using my phone. The videos show me being directed to leave and document what I understood to be my permanent displacement from the property.

10. At no time on January 26, 2023 did anyone from Fox Normandie Apartments, A Community of Friends, or any related entity provide me with relocation assistance payments or a relocation offer under Los Angeles County Code Chapter 8.52 or any similar law.

11. No one clearly explained to me that I was entitled to a relocation payment or benefits as a result of a no-fault or Ellis-related displacement, and I was not given any relocation check before being required to leave the unit.

12. After the lockout, I became homeless. I lost the stability of my unit, and I was forced to survive in unstable and unsafe environments, including living on the street and in temporary situations.

13. As a result of the displacement, I lost the benefit of my Section 8 voucher or similar housing-assistance support that had been critical to my ability to afford rent. Once the voucher was disrupted or lost, it was extremely difficult for me to secure new permanent housing.

14. I suffered financial losses, including having no stable address, difficulty obtaining new housing, and challenges maintaining or seeking employment because I did not have a reliable place to live.

15. I have suffered and continue to suffer severe emotional distress as a result of being locked out, losing my home, and living without proper shelter. This has included anxiety, depression, fear for my safety, and feelings of humiliation and powerlessness.

16. I have also experienced health impacts, including physical strain and illness that I believe were exacerbated by life on the street and the stress of my housing situation.

17. My claims in this lawsuit are not about punishing Defendants for simply filing a court case. My claims arise from their actions in connection with the lockout and their failures to follow laws intended to protect tenants who are being displaced.

18. The trauma and damages I describe here are tied to the way the lockout was carried out and the fact that I was not given relocation assistance or a meaningful opportunity to protect my housing rights.

19. I did file other cases in 2023 related to these events and my treatment by different entities. Some of those cases were dismissed without prejudice, and others involved different defendants and narrower issues. None of them fully resolved the wrongful eviction, relocation, and tenant-protection issues I raise in this case against Fox Normandie and A Community of Friends.

20. But for Defendants' unlawful conduct, I would not have lost my housing, my Section 8 voucher, or become unhoused homeless.

21. The attached screenshots and videos labeled Exhibit B are true and accurate representations of the events I recorded on January 26th, 2023

22. I am bringing this case in good faith to seek accountability for the harms caused to me by the way I was displaced from my home and the statutory protections I believe were ignored.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on November 25th, 2025, at Los Angeles, California.

_____

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Derrick LaMont Beverly

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

STANLEY-MOSK SUPERIOR COURTHOUSE

CENTRAL DISTRICT

DERRICK LAMONT BEVERLY,	**Case No.: 22STUD06657**
Plaintiff,	**NOTICE OF MOTION AND MOTION FOR SANCTIONS AGAINST DEFENDANTS AND DEFENSE COUNSEL**
v.	
FOX NORMANDIE APARTMENTS, LP; A COMMUNITY OF FRIENDS; and DOES 1–20	
Defendants.	**Judge: Hon. Hernandez** **Dept.: 34** **Hearing: January 6, 2026**

OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP; CCP § 425.16) DECLARATION OF DERRICK LAMONT BEVERLY NOTICE OF MOTION AND MOTION FOR SANCTIONS AGAINST DEFENDANTS AND DEFENSE COUNSEL PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DECLARATION OF ADA REYES IN SUPPORT OF DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP)

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on a date and time to be set by the Court after expiration of the twenty-one (21) day safe harbor period required by Code of Civil Procedure section 128.7(c), Plaintiff DERRICK LAMONT BEVERLY ("Plaintiff") will and hereby does move the Court for an order imposing sanctions against Defendants FOX NORMANDIE APARTMENTS, LP and A COMMUNITY OF FRIENDS (collectively, "Defendants"), and their counsel, the Law Offices of Ahlers, Reyes & Sines ("ARCS").

This Motion is made on the grounds that Defendants' Special Motion to Strike under Code of Civil Procedure section 425.16 is legally frivolous, overbroad, and brought for an improper purpose, namely to delay adjudication of Plaintiff's tenant-protection and housing claims and to chill Plaintiff's exercise of his rights of access to the courts.

Plaintiff seeks monetary sanctions in an amount to be determined by the Court, but not less than $5,000, pursuant to Code of Civil Procedure section 128.7(d) and section 425.16(c), together with such other and further relief as the Court deems just and proper.

Filing an anti-SLAPP motion where the gravamen is non-communicative conduct constitutes frivolous motion practice. (*USA Waste of California v. City of Irwindale* (2010) 184 Cal.App.4th 53.)

This Motion is based on this Notice, the attached Memorandum of Points and Authorities, the Declaration of Derrick LaMont Beverly, the papers and records on file in this action, and any further evidence or argument that may be presented at the hearing.

Dated: November 25th, 2025

Respectfully submitted,

_____

/s/ Derrick LaMont Beverly

Plaintiff in Propria Persona

Derrick LaMont Beverly

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

STANLEY-MOSK SUPERIOR COURTHOUSE

CENTRAL DISTRICT

DERRICK LAMONT BEVERLY,	**Case No.: 22STUD06657**
Plaintiff,	**MEMORANDUM OF POINTS AND AUTHORITIES**
V	
FOX NORMANDIE APARTMENTS, LP;	
A COMMUNITY OF FRIENDS; and DOES 1–20	
Defendants.	
	Judge: Hon. Hernandez
	Dept.: 34
	Hearing: January 6, 2026

OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP; CCP § 425.16) DECLARATION OF DERRICK LAMONT BEVERLY NOTICE OF MOTION AND MOTION FOR SANCTIONS AGAINST DEFENDANTS AND DEFENSE COUNSEL PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DECLARATION OF ADA REYES IN SUPPORT OF DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP)

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Defendants have filed a sweeping Special Motion to Strike under Code of Civil Procedure section 425.16 that mischaracterizes Plaintiff's complaint, overstates the reach of the litigation privilege, and improperly seeks to erase a housing-rights and tenant-protection case by calling it a "SLAPP." The Motion attempts to convert non-communicative conduct—including a lockout, failure to provide relocation payments, and other statutory violations—into "protected petitioning activity," contrary to established California law.

This is not a legitimate use of the anti-SLAPP statute. It is an overreach. It is designed to delay and to chill Plaintiff's attempt to hold Defendants accountable for wrongful conduct tied to his displacement from his home. Sanctions are appropriate under Code of Civil Procedure section 128.7 because the Motion is not warranted by existing law and is presented for improper purposes. Anti-SLAPP fee-shifting principles under section 425.16(c) further support sanctions where a motion lacks merit and is used as a tactical weapon against a self-represented litigant.

II. LEGAL STANDARD

A. Sanctions Under Code of Civil Procedure Section 128.7

Section 128.7 requires that any paper presented to the court be warranted by existing law or a nonfrivolous argument for extension, modification, or reversal of existing law; that factual contentions have evidentiary support; and that the paper is not presented for an improper purpose such as to harass, cause unnecessary delay, or needlessly increase litigation costs.

After compliance with the 21-day safe harbor procedure, the court may impose an appropriate sanction upon attorneys, law firms, or parties that violate the statute.

B. Sanctions Under Code of Civil Procedure Section 425.16(c)

Code of Civil Procedure section 425.16(c) authorizes the court to award attorney's fees and costs to a plaintiff where it finds that a special motion to strike is frivolous or brought solely to cause unnecessary delay. Although Plaintiff is self-represented, the court retains inherent authority to fashion appropriate sanctions to deter abusive motion practice.

III. DEFENDANTS' ANTI-SLAPP MOTION IS LEGALLY FRIVOLOUS

A. The Motion Attempts to Convert Non-Communicative Conduct into Protected Activity

Plaintiff's opposition explains that the gravamen of his complaint is Defendants' illegal lockout, failure to comply with local relocation ordinances, interference with housing rights, and post-displacement harms. These are non-communicative acts. Defendants' Motion nonetheless tries to characterize virtually every aspect of that conduct as "petitioning activity" merely because a prior unlawful detainer case existed.

California courts have repeatedly held that anti-SLAPP does not protect purely non-communicative acts, even if they occur in the shadow of litigation. Extending section 425.16 to cover lockout conduct and tenant-protection violations is inconsistent with established law.

B. The Motion Seeks Overbroad Relief Contrary to Mixed-Cause Authority

The Motion asks the Court to strike broad swaths of the complaint—or effectively the entire action—rather than surgically addressing discrete allegations that might, in Defendants' view, arise from protected activity. Mixed-cause authority requires a narrower approach and does not permit anti-SLAPP to be used as a generalized demurrer or summary judgment substitute.

Defendants' refusal to tailor their request demonstrates an improper use of the statute and supports a finding of frivolousness.

C. Misuse of Prior 2023 Proceedings

Defendants also lean heavily on multiple 2023 matters to suggest that Plaintiff's claims are barred or already decided. Several of those cases were dismissed without prejudice, and others involved different parties and narrower issues. To the extent Defendants assert preclusion based on those proceedings, such assertions are not well grounded in fact or law.

This pattern—overstating the effect of prior cases to intimidate a self-represented tenant out of litigating statutory rights—further demonstrates improper purpose.

IV. IMPROPER PURPOSE: DELAY AND CHILLING EFFECT

The practical effect of Defendants' Motion has been to stall resolution of Plaintiff's claims, expand the briefing burden on a self-represented litigant, and threaten fee exposure as a means of chilling Plaintiff's exercise of his rights. The Motion does not promote early resolution of meritless claims; rather, it obstructs legitimate claims grounded in tenant-protection statutes and wrongful eviction principles.

Under section 128.7 and the policy behind section 425.16(c), such use of the anti-SLAPP statute warrants sanctions that are calibrated to deter repetition of this conduct.

V. REQUESTED SANCTIONS

Plaintiff respectfully requests that the Court impose monetary sanctions against Defendants and their counsel in an amount not less than $5,000, or such other amount the Court deems just and sufficient to deter similar conduct, and to award any other appropriate relief, including but not limited to an order admonishing Defendants and counsel to narrowly tailor any future anti-SLAPP motions to genuine protected-activity allegations.

VI. CONCLUSION

For the foregoing reasons, Plaintiff requests that the Court, after compliance with the safe harbor process, grant this Motion for Sanctions and issue an order imposing monetary and other appropriate sanctions against Defendants and their counsel.

Dated: November 25th, 2025

Respectfully submitted,

_____

/s/ Derrick LaMont Beverly

Plaintiff in Propria Persona

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

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CENTRAL DISTRICT

DERRICK LAMONT BEVERLY, Plaintiff, v. **FOX NORMANDIE APARTMENTS, LP;** **A COMMUNITY OF FRIENDS; and DOES 1–20** Defendants.	**Case No.: 22STUD06657** **PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DECLARATION OF ADA REYES IN SUPPORT OF DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP)** **Judge: Hon. Hernandez** **Dept.: 34** **Hearing: January 6, 2026**

OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP; CCP § 425.16) DECLARATION OF DERRICK LAMONT BEVERLY NOTICE OF MOTION AND MOTION FOR SANCTIONS AGAINST DEFENDANTS AND DEFENSE COUNSEL PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DECLARATION OF ADA REYES IN SUPPORT OF DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP)

PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DECLARATION OF ADA REYES

Plaintiff Derrick LaMont Beverly hereby submits the following evidentiary objections to the Declaration of Ada Reyes ("Reyes Declaration") filed in support of Defendants' Special Motion to Strike under Code of Civil Procedure section 425.16.

General Objection

To the extent any statements rely on attorney argument disguised as fact, Plaintiff objects under Evidence Code 702, 800, and 802.

Plaintiff objects to the Reyes Declaration to the extent it contains legal conclusions, argument, speculation regarding Plaintiff's motives or intent, and characterizations of court records that are misleading or incomplete. Court records speak for themselves and are the best evidence of their contents.

Specific Objections

1. Paragraph 9, sentence stating in substance that "Clearly, Defendants did not carry out an illegal eviction."

OBJECTION: Calls for a legal conclusion; argumentative; lacks foundation. The declarant has not laid a foundation to opine on ultimate legal issues reserved for the Court.

REQUEST: That this statement be excluded or disregarded.

2. Any statements in the Reyes Declaration purporting to characterize Plaintiff's intent or motivation in filing prior lawsuits (including but not limited to statements that Plaintiff is merely attempting to relitigate decided matters).

OBJECTION: Speculation; lack of personal knowledge; improper opinion testimony. The declarant cannot know Plaintiff's internal motives or intentions.

REQUEST: That these statements be excluded or disregarded.

3. Paragraphs summarizing prior anti-SLAPP rulings and dismissals in other cases, including but not limited to references to 23STCV07492, 23STCV07609, 23STCV07707, 23STCV08227, and 23STCV08356, to the extent they characterize those rulings as determinations on the merits of all issues raised in this action.

OBJECTION: Mischaracterization of judicial records; best evidence rule; legal conclusion. Court orders are the best evidence of what they decided. The declarant's gloss on those orders is not competent evidence.

REQUEST: That the Court rely on the actual orders rather than the declarant's characterization.

4. Any statements asserting or implying that Plaintiff's present claims are barred by res judicata or collateral estoppel based on the prior cases and rulings described.

OBJECTION: Legal conclusion; improper lay opinion. The existence and effect of res judicata or collateral estoppel are legal determinations for the Court, not factual matters within a witness's personal knowledge.

REQUEST: That such statements be excluded or disregarded.

5. Any hearsay statements concerning alleged service of notices or UD pleadings on Plaintiff where the declarant does not establish personal knowledge of who served what, when, and how, and instead relies on records not attached or authenticated.

OBJECTION: Hearsay; lack of foundation; improper reliance on unproduced records.

REQUEST: That such statements be excluded unless proper foundation and authentication are provided.

Plaintiff respectfully requests that the Court sustain these objections and consider only proper, competent evidence in ruling on Defendants' Special Motion to Strike.

Dated: November 25th, 2025

Respectfully submitted,

_____

/s/ Derrick LaMont Beverly

Plaintiff in Propria Persona